HEALTH & SAFETY POLICY / POLÍTICA DE SALUD Y SEGURIDAD

New-Hire Handout / Guía para nuevos trabajadores

ENGLISH

Our commitment. Centrix and the assigned client site coordinate safety responsibilities and training. Follow this policy and client site rules. This handout does not replace task-specific training.

Training and assignments. Before starting, complete Centrix orientation and client site safety training in a language you understand. Know emergency exits and reporting procedures. Perform only tasks you are trained and authorized to do. Notify Centrix before accepting changed duties or locations.

PPE and safe work. Use all required personal protective equipment (PPE). Report missing or damaged equipment. Follow chemical labels and safety data sheets. Use safe lifting methods and keep areas clear. Never bypass guards. Do not operate equipment, make repairs, or enter confined spaces without required training and authorization.

Report promptly. Report hazards, near misses, injuries, illnesses, and exposures to both the client site supervisor and Centrix, even if minor. Obtain medical care without delay; emergency treatment comes first.

Unsafe work and emergencies. If a task appears unsafe or you lack training or PPE, stop, move to safety, and notify the client site supervisor and Centrix. Follow evacuation instructions. Call 911 for emergencies. Do not attempt rescue beyond your training.

Fitness and respect. Do not work impaired by alcohol, drugs, fatigue, or medication effects. Tell Centrix about safety-related work restrictions. Violence, threats, horseplay, and harassment are prohibited.

No retaliation. Report safety concerns without fear of retaliation. Notify Centrix of unresolved concerns or retaliation. This policy does not limit legal reporting rights or employer safety duties.

ESPAÑOL

Nuestro compromiso. Centrix y el sitio del cliente asignado coordinan las responsabilidades de seguridad y la capacitación. Cumpla esta política y las reglas del sitio del cliente. Esta guía no sustituye la capacitación específica para cada tarea.

Capacitación y asignaciones. Antes de comenzar, complete la orientación de Centrix y la capacitación de seguridad del sitio del cliente en un idioma que comprenda. Conozca las salidas de emergencia y cómo reportar problemas. Realice solo tareas para las que esté capacitado y autorizado. Avise a Centrix antes de aceptar cambios de tareas o ubicación.

EPP y trabajo seguro. Use todo el equipo de protección personal (EPP) requerido. Reporte equipos faltantes o dañados. Siga las etiquetas de sustancias químicas y las hojas de datos de seguridad. Levante cargas de forma segura y mantenga las áreas despejadas. Nunca anule los resguardos. No opere equipos, haga reparaciones ni entre en espacios confinados sin la capacitación y autorización requeridas.

Reporte oportunamente. Reporte peligros, cuasi accidentes, lesiones, enfermedades y exposiciones al supervisor del sitio del cliente y a Centrix, aunque parezcan leves. Busque atención médica sin demora; el tratamiento de emergencia es prioritario.

Trabajo inseguro y emergencias. Si una tarea parece insegura o le falta capacitación o EPP, deténgase, vaya a un lugar seguro y avise al supervisor del sitio del cliente y a Centrix. Siga las instrucciones de evacuación. Llame al 911 en emergencias. No intente rescates que excedan su capacitación.

Aptitud y respeto. No trabaje bajo los efectos del alcohol, drogas, fatiga o medicamentos que afecten su seguridad. Informe a Centrix sobre restricciones laborales relacionadas con la seguridad. Se prohíben la violencia, amenazas, juegos bruscos y acoso.

Sin represalias. Reporte inquietudes de seguridad sin temor a represalias. Informe a Centrix sobre problemas no resueltos o represalias. Esta política no limita sus derechos legales de denuncia ni las obligaciones de seguridad del empleador.

Centrix safety contact / Contacto de seguridad: _____ Tel.: _____

Acknowledgment / Acuse de recibo: I received this policy; signing does not waive my rights. / Recibí esta política; mi firma no implica renuncia a mis derechos.

Name / Nombre: _____ Signature / Firma: _____ Date / Fecha: _____

OVERTIME & PAY CALCULATION POLICY
POLÍTICA DE HORAS EXTRAS Y CÁLCULO DEL PAGO

New-Hire Handout / Guía para nuevos trabajadores

ENGLISH

Weekly overtime. Centrix pays overtime for hours worked over 40 in a workweek at 1.5 times the employee's regular rate of pay. Hours do not average across separate workweeks. A workweek is a fixed, recurring period of seven consecutive days; it is not necessarily the same as the pay period.

Hours counted. Record all time actually worked, including required training and other compensable work. Report interrupted or worked meal breaks. Paid holidays, vacation, sick leave, and other paid time not worked generally do not count toward 40 hours unless required by law or an applicable agreement.

How pay is calculated. For a single hourly rate with no other includable compensation: regular pay = up to 40 hours × hourly rate; overtime pay = hours over 40 × hourly rate × 1.5. Example: 45 hours at $20/hour = $800 regular pay + $150 overtime pay = $950 gross pay, before taxes and lawful deductions.

Regular rate adjustments. The regular rate may include nondiscretionary bonuses, shift differentials, and other legally includable compensation. If you work at multiple rates or client sites for Centrix in the same workweek, applicable hours are combined and overtime is calculated under applicable law.

Approval and time records. Obtain advance approval from Centrix and the assigned client site before working overtime. Record and submit every hour worked accurately. All compensable time worked will be paid, even if not approved; failure to follow approval rules may result in corrective action. Never work off the clock.

Questions and corrections. Review your pay statement and promptly report missing hours or pay errors to Centrix. Retaliation for reporting pay concerns is prohibited. More protective federal, state, or local requirements and applicable agreements control, including any required daily overtime or higher premiums.

ESPAÑOL

Horas extras semanales. Centrix paga las horas trabajadas que excedan de 40 en una semana laboral a 1.5 veces la tarifa regular de pago. No se promedian horas entre semanas distintas. La semana laboral es un período fijo y recurrente de siete días consecutivos; no necesariamente coincide con el período de pago.

Horas que se cuentan. Registre todo el tiempo trabajado, incluida la capacitación obligatoria y otro trabajo remunerable. Reporte descansos para comer interrumpidos o trabajados. Los feriados, vacaciones, licencias por enfermedad y otro tiempo pagado no trabajado generalmente no cuentan para las 40 horas, salvo que la ley o un acuerdo aplicable lo exija.

Cálculo del pago. Con una sola tarifa por hora y sin otra remuneración que deba incluirse: pago regular = hasta 40 horas × tarifa por hora; horas extras = horas sobre 40 × tarifa por hora × 1.5. Ejemplo: 45 horas a $20/hora = $800 de pago regular + $150 de horas extras = $950 brutos, antes de impuestos y deducciones legales.

Ajustes a la tarifa regular. La tarifa regular puede incluir bonos no discrecionales, diferenciales de turno y otros pagos exigidos por ley. Si trabaja con distintas tarifas o en varios sitios del cliente para Centrix durante la misma semana, se combinan las horas aplicables y se calculan las horas extras conforme a la ley.

Autorización y registros. Obtenga autorización previa de Centrix y del sitio del cliente asignado antes de trabajar horas extras. Registre y entregue todas las horas con exactitud. Se pagará todo trabajo remunerable, aunque no esté autorizado; incumplir las reglas de autorización puede resultar en medidas correctivas. Nunca trabaje sin registrar el tiempo.

Consultas y correcciones. Revise su comprobante de pago y reporte pronto a Centrix las horas faltantes o errores. Se prohíben las represalias por reportar inquietudes de pago. Prevalecen las leyes federales, estatales o locales y los acuerdos aplicables que otorguen mayor protección, incluidas horas extras diarias o primas superiores cuando correspondan.

Workweek / Semana laboral: Sunday–Saturday / Domingo–sábado
Payday / Día de pago: Friday / Viernes
Centrix payroll contact / Contacto de nómina: Berlinda Diaz • 201-330-8881

Receipt only; no waiver of rights. / Solo acuse de recibo; no implica renuncia a derechos.
Name / Nombre: _____ Signature / Firma: _____ Date / Fecha: _____

NJ EARNED SICK LEAVE POLICY
POLÍTICA DE LICENCIA POR ENFERMEDAD DE NJ

New-Hire Handout / Guía para nuevos trabajadores

ENGLISH

Earning and using leave. Covered Centrix employees working in NJ, including temporary and part-time workers, earn 1 paid sick-leave hour per 30 hours worked, starting on hire. Accrual and use are each capped at 40 hours per benefit year, January 1 –December 31. Use begins on the 120th calendar day after employment starts, unless Centrix permits earlier use. Client-site changes do not restart this waiting period.

Permitted reasons. Use leave for your or a family member's physical or mental illness, injury, diagnosis, treatment, preventive care, or recovery; needs arising from domestic or sexual violence (including medical, counseling, legal, relocation, or safety services); qualifying public-health workplace or school/childcare closures, isolation or quarantine; and school-requested meetings or events about a child's health or disability, or care-related meetings. Family includes blood relatives and people whose close association is equivalent to family.

Requesting leave. Contact Centrix at the number below. Give up to 7 days' advance notice when foreseeable; otherwise notify Centrix as soon as practicable. No replacement worker or make-up hours are required. Centrix will not require more leave than needed; requests may be made for partial shifts.

Documentation and privacy. Centrix may request reasonable documentation for 3 or more consecutive workdays of leave, as permitted by NJ law. This policy establishes no special restricted dates. You need not disclose a diagnosis or details of violence. Leave information is confidential and disclosed only with consent or as legally permitted.

Pay. Leave is paid at the rate required by NJ law, with the same benefits and no less than the applicable NJ minimum wage. Variable or multiple rates are calculated under NJ rules. Payment is due no later than the payday for the next regular payroll period after leave is taken. Paid leave is not hours worked for overtime.

Carryover and return. Carry over up to 40 unused hours into the next benefit year; use remains capped at 40 hours per year. Moving between Centrix client sites does not erase your balance. Unused leave is restored if rehired within 6 months. No separation payout is provided unless otherwise required by law or agreement.

Your rights. No retaliation, attendance penalties, or discipline for lawful use or reporting concerns. More protective laws or agreements control. Receive the official NJ notice (MW-565) separately. Questions/complaints: NJDOL, 609-292-2305; nj.gov/labor/file. Centrix maintains required leave records for at least 5 years.

ESPAÑOL

Acumulación y uso. Los empleados de Centrix cubiertos que trabajan en NJ, incluidos temporales y de tiempo parcial, acumulan 1 hora de licencia pagada por cada 30 horas trabajadas desde la contratación. Se permite acumular y usar hasta 40 horas por año de beneficios, del 1 de enero al 31 de diciembre. El uso comienza el día calendario 120 de empleo, salvo autorización anterior de Centrix. Cambiar de sitio del cliente no reinicia la espera.

Motivos permitidos. Puede usarla para enfermedad física o mental, lesión, diagnóstico, tratamiento, prevención o recuperación propia o de un familiar; necesidades por violencia doméstica o sexual (servicios médicos, psicológicos, legales, de reubicación o seguridad); cierres del trabajo, escuela o guardería, aislamiento o cuarentena por motivos de salud pública previstos por ley; y reuniones o eventos solicitados por la escuela sobre la salud o discapacidad de un hijo, o reuniones sobre su cuidado. Familia incluye parientes de sangre y personas con vínculos equivalentes a los familiares.

Cómo solicitarla. Contacte a Centrix al número indicado abajo. Avise con hasta 7 días de anticipación si es previsible; de lo contrario, tan pronto como sea posible. No debe buscar reemplazo ni recuperar las horas. Centrix no exigirá más licencia de la necesaria; puede solicitar parte de un turno.

Documentación y privacidad. Centrix puede pedir documentación razonable por 3 o más días laborables consecutivos, conforme a la ley de NJ. Esta política no establece fechas especiales restringidas. No tiene que revelar un diagnóstico ni detalles de violencia. La información es confidencial; solo se divulga con consentimiento o cuando la ley lo permite.

Pago. Se paga a la tarifa exigida por NJ, con los mismos beneficios y nunca por debajo del salario mínimo aplicable de NJ. Las tarifas variables o múltiples se calculan según las reglas de NJ. Se paga a más tardar el día de pago del siguiente período regular de nómina después del uso. La licencia pagada no cuenta como horas trabajadas para horas extras.

Traslado de saldo y regreso. Se trasladan hasta 40 horas no usadas al siguiente año; el uso sigue limitado a 40 horas anuales. Cambiar de sitio del cliente de Centrix no elimina el saldo. Se restituye la licencia no usada si vuelve a ser contratado dentro de 6 meses. No se paga el saldo al terminar el empleo salvo exigencia legal o contractual.

Sus derechos. No habrá represalias, sanciones de asistencia ni disciplina por uso legítimo o por reportar inquietudes. Prevalecen las leyes o acuerdos más protectores. Recibirá por separado el aviso oficial de NJ (MW-565). Consultas/quejas: NJDOL, 609-292-2305; nj.gov/labor/file. Centrix conserva los registros exigidos por al menos 5 años.

Centrix contact / Contacto: Berlinda Diaz • 201-330-8881

Receipt only; no waiver of rights. / Solo acuse de recibo; no implica renuncia a derechos.
Name / Nombre: _____ Signature / Firma: _____ Date / Fecha: _____

Temporary Laborer Assignment Notification

Notificación de Asignación de Trabajadores Temporales

under | *bajo* N.J.S.A. 34:8D-3

The Temporary Help Service Firm must give this completed form to each Temporary Laborer upon assignment to a temporary position. All parties should keep a copy of this form for their records. An updated version of this form will be available in August 2023.

La Empresa de Servicios de Trabajadores Temporales debe entregar este formulario completo a cada trabajador(a) temporal en asignarse a un puesto temporal. Todas las partes deben mantener una copia de este formulario en sus archivos. Una nueva versión de este formulario estará en línea en agosto de 2023.

Full Name of Temporary Laborer
Nombre completo del trabajador(a) temporal

Temporary Help Service Firm *Empresa de Servicios de Trabajadores Temporales*	**Worksite Employer or Third-Party Client** *El proveedor de trabajo externo*
Name | *Nombre*	Name | *Nombre*
Street Address | *Dirección*	Street Address | *Dirección*
City | *Ciudad* State | *Estado* ZIP Code | *Código postal*	City | *Ciudad* State | *Estado* ZIP Code | *Código postal*
Phone | *Teléfono* Ext.	Phone | *Teléfono* Ext.
Workers' Compensation Carrier of Temporary Help Service Firm *Compañia de Seguro de Compensación para Trabajadores de la empresa*	**Assigned Worksite** (if different from above) *Lugar del Trabajo Designado (si es diferente al de arriba)*
Name | *Nombre*	Name | *Nombre*
Street Address | *Dirección*	Street Address | *Dirección*
City | *Ciudad* State | *Estado* ZIP Code | *Código postal*	City | *Ciudad* State | *Estado* ZIP Code | *Código postal*
Phone | *Teléfono* Ext.	Phone | *Teléfono* Ext.

Name and nature of work to be performed | ***Nombre y naturaleza del trabajo***

Description of the position | ***Descripción*** *del puesto*

Wages | ***Salarios***

Schedule and duration (if known) of the Temporary Laborer's assignment | ***Horario*** *y duración (si se conoce) de la asignación*

Is **training** required for the Temporary Laborer? *¿Se requiere* ***capacitación*** *para el trabajador temporal?*

☐ No ☐ Yes. Training will be provided by | *Sí. La capacitación estará a cargo de:*

- ☐ Temporary Help Service Firm | *Empresa de servicios de trabajadores temporales*
- ☐ Third-Party Client | *El proveedor de trabajo externo*
- ☐ Temporary Laborer. List cost, if any to Temporary Laborer: $_____
  Trabajador(a) temporal. Indique el costo, si lo hay, para el trabajador(a) temporal

Describe the required training | *Describa la capacitación requerida*:

Will **meal(s)** be provided to the Temporary Laborer by the Temporary Help Service Firm or the Third-Party Client?
*¿La empresa de servicios de trabajadores temporales o el proveedor de trabajo externo le proporcionarán **comida** para el trabajador(a) temporal?*

☐ No ☐ Yes. List cost, if any, to Temporary Laborer: $_____
Sí. Indique el costo, si lo hay, para el trabajador(a) temporal

Will **equipment** be provided to the Temporary Laborer by the Temporary Help Service Firm or the Third-Party Client?
¿La empresa de servicios de trabajadores temporales o el proveedor de trabajo externo le proporcionarán el equipo al trabajador(a) temporal?

☐ No ☐ Yes. List cost, if any, to Temporary Laborer: $_____
Sí. Indique el costo, si lo hay, para el trabajador(a) temporal

Describe the required equipment | *Describa el equipo requerido:*

Is **special clothing** required for the Temporary Laborer? *¿Se requiere **ropa especial** para el trabajador(a) temporal?*

☐ No ☐ Yes. Supplies will be provided by | *Sí. Los suministros serán proporcionados por:*

- ☐ Temporary Help Service Firm | *Empresa de servicios de trabajadores temporales*
- ☐ Third-Party Client | *El proveedor de trabajo externo*
- ☐ Temporary Laborer. List cost, if any to Temporary Laborer: $_____
  Trabajador(a) temporal. Indique el costo, si lo hay, para el trabajador(a) temporal

Describe the required special clothing | *Describa la ropa especial requerida:*

Is **protective equipment** required for the Temporary Laborer? *¿Se requiere **equipo de protección** para el trabajador(a) temporal?*

☐ No ☐ Yes. Supplies will be provided by | *Sí. Los suministros serán proporcionados por:*

- ☐ Temporary Help Service Firm | *Empresa de servicios de trabajadores temporales*
- ☐ Third-Party Client | *El proveedor de trabajo externo*
- ☐ Temporary Laborer. List cost, if any to Temporary Laborer: $_____
  Trabajador(a) temporal. Indique el costo, si lo hay, para el trabajador(a) temporal

Describe the protective equipment | *Describa el equipo de protección:*

Are any **license(s)** required for the Temporary Laborer? (for example, driver, occupational, etc.)
*¿Se requiere alguna **licencia** para el trabajador(a) temporal? (por ejemplo, conductor, ocupacional)*

☐ No ☐ Yes. Describe the required license(s) | *Sí. Describa la(s) licencia(s) requerida(s):*

Is **transportation** offered to the Temporary Laborer? *¿Se ofrece **transporte** al Trabajador(a) Temporal?*

☐ No ☐ Yes. Describe the terms of transportation offered | *Sí. Describa los términos del transporte ofrecido:*

Earned Sick Leave is the law in New Jersey. As an employee of this Temporary Help Service Firm, you have the right to Earned Sick Leave, which you can use to care for yourself or a loved one, including for physical/mental illness or wellness care, to cope with domestic or sexual violence, or attend a required or requested meeting or event at your child's school. For more details, visit *mysickdays.nj.gov.* The Temporary Help Service Firm, not the Third-Party Client, pays you earned sick leave at your normal rate of pay. The Temporary Help Service Firm must attach a copy of the New Jersey Earned Sick Leave Notice of Employee Rights to this form. You can also find it online at *nj.gov/labor/EarnedSick*. For more information on New Jersey's worker benefits and protections, see *myworkrights.nj.gov.*

Licencia Pagada Por Enfermedad es la ley en New Jersey. Como empleado/empleada de esta Empresa de Servicios de Trabajadores Temporales, usted tiene el derecho a la Licencia Pagada Por Enfermedad, la cual, usted puede uitilizar para cuidarse de usted mismo o de un ser querido, incluyendo por enfermedad física o mental o cuidado del bienestar, para hacer frente a la violencia doméstica o sexual, o para asistir a una reunión o evento requerido o solicitado en la escuela de su hijo o hija. Para más detalles, visite mysickdays.nj.gov. La Empresa de Servicios de Trabajadores Temporales, no el Proveedor de Trabajo Externo, le paga por la liciencia pagado por enfermedad a su tarifa normal de pago. La Empresa de Servicios de Trabajadores Temporales debe adjuntar a este formulario una copia del Aviso de Derechos de los Empleados a la Licencia de Enfermedad Pagada de New Jersey (New Jersey Earned Sick Leave Notice of Employee Rights). Lo podrá encontrar también por internet en *nj.gov/labor/licenciaenfermedad.* Para más información sobre los beneficios y las protecciones para trabajadores en New Jersey, véase *myworkrights.nj.gov.*

New Jersey Department of Labor and Workforce Development

New Jersey Earned Sick Leave

Notice of Employee Rights

Under New Jersey's Earned Sick Leave Law, most employees have a right to accrue up to 40 hours of earned sick leave per year. Go to *nj.gov/labor* to learn which employees are covered by the law.

New employees must receive this written notice from their employer when they begin employment, and existing employees must receive it by November 29, 2018. Employers must also post this notice in a conspicuous and accessible place at all work sites, and provide copies to employees upon request.

YOU HAVE A RIGHT TO EARNED SICK LEAVE.

Amount of Earned Sick Leave

Your employer must provide up to a total of 40 hours of earned sick leave every benefit year. Your employer's benefit year is:

Start of Benefit Year: January 1 End of Benefit Year: December 31

Rate of Accrual

You accrue earned sick leave at the rate of 1 hour for every 30 hours worked, up to a maximum of 40 hours of leave per benefit year. Alternatively, your employer can provide you with 40 hours of earned sick leave up front.

Date Accrual Begins

You begin to accrue earned sick leave on October 29, 2018, or on your first day of employment, whichever is later.

Exception: If you are covered by a collective bargaining agreement that was in effect on October 29, 2018, you begin to accrue earned sick leave under this law beginning on the date that the agreement expires.

Date Earned Sick Leave is Available for Use

You can begin using earned sick leave accrued under this law on February 26, 2019, or the 120th calendar day after you begin employment, whichever is later. However, your employer can provide benefits that are more generous than those required under the law, and can permit you to use sick leave at an earlier date.

Acceptable Reasons to Use Earned Sick Leave

You can use earned sick leave to take time off from work when:

- **You** need diagnosis, care, treatment, or recovery for a mental or physical illness, injury, or health condition; or you need preventive medical care.
- You need to care for a **family member** during diagnosis, care, treatment, or recovery for a mental or physical illness, injury, or health condition; or your family member needs preventive medical care.
- You or a family member **have been the victim of domestic violence or sexual violence** and need time for treatment, counseling, or to prepare for legal proceedings.
- You need to attend **school-related conferences, meetings, or events** regarding your child's education; or to attend a school-related meeting regarding your child's health.
- Your employer's business **closes due to a public health emergency** or you need to care for a child whose school or child care provider closed due to a public health emergency.

Family Members

The law recognizes the following individuals as "family members:"

- Child (biological, adopted, or foster child; stepchild; legal ward; child of a domestic partner or civil union partner)
- Grandchild • Sibling • Spouse • Parent • Grandparent
- Domestic partner or civil union partner
- Spouse, domestic partner, or civil union partner of an employee's parent or grandparent
- Sibling of an employee's spouse, domestic partner, or civil union partner
- Any other individual related by blood to the employee
- Any individual whose close association with the employee is the equivalent of family

Advance Notice

If your need for earned sick leave is foreseeable (can be planned in advance), your employer can require up to 7 days' advance notice of your intention to use earned sick leave. If your need for earned sick leave is unforeseeable (cannot be planned in advance), your employer may require you to give notice as soon as it is practical.

Documentation

Your employer can require reasonable documentation if you use earned sick leave on 3 or more consecutive work days, or on certain dates specified by the employer. The law prohibits employers from requiring your health care provider to specify the medical reason for your leave.

Unused Sick Leave

Up to 40 hours of unused earned sick leave can be carried over into the next benefit year. However, your employer is only required to let you use up to 40 hours of leave per benefit year. Alternatively, your employer can offer to purchase your unused earned sick leave at the end of the benefit year.

You Have a Right to be Free from Retaliation for Using Earned Sick Leave

Your employer cannot retaliate against you for:

- Requesting and using earned sick leave
- Filing a complaint for alleged violations of the law
- Communicating with any person, including co-workers, about any violation of the law
- Participating in an investigation regarding an alleged violation of the law, and
- Informing another person of that person's potential rights under the law.

Retaliation includes any threat, discipline, discharge, demotion, suspension, or reduction in hours, or any other
adverse employment action against you for exercising or attempting to exercise any right guaranteed under the law.

You Have a Right to File a Complaint

You can file a complaint with the New Jersey Department of Labor and Workforce Development online at *nj.gov/labor/wagehour/complnt/filing_wage_claim.html* or by calling 609-292-2305 between 8:30 a.m. and 4:30 p.m., Monday through Friday.

Keep a copy of this notice and all documents that show your amount of sick leave accrual and usage.

You have a right to be given this notice in English and, if available, your primary language.

For more information visit the website of the Department of Labor and Workforce Development: *nj.gov/labor*.

Enforced by: NJ Department of Labor and Workforce Development
Division of Wage and Hour Compliance, PO Box 389, Trenton, NJ 08625-0389 • 609-292-2305

This and other required employer posters are available free online at ***nj.gov/labor***.

If you need this document in Braille or large print, call 609-292-2305. TTY users can contact this department through the New Jersey Relay: 7-1-1.

Display this poster in a conspicuous place

New Jersey Department of Labor and Workforce Development

Permiso de ausencia laboral debido a enfermedad de New Jersey

Aviso de derechos del empleado

Spanish

Según la ley de Permiso de ausencia laboral debido a enfermedad de New Jersey, la mayoría de los empleados tienen derecho a acumular hasta 40 horas de permiso de ausencia laboral debido a enfermedad por año. Diríjase a ***nj.gov/labor*** para conocer qué empleados están cubiertos por la ley.

Los nuevos empleados deben recibir este aviso por escrito de parte de su empleador cuando comienzan a trabajar, y los empleados ya contratados deben recibirlo antes del 29 de noviembre de 2018. Los empleadores también deben publicar este aviso de manera visible y accesible en todos los sitios de trabajo, así como proporcionar copias a los empleados cuando lo soliciten.

USTED TIENE DERECHO A SOLICITAR UN PERMISO DE AUSENCIA LABORAL DEBIDO A ENFERMEDAD.

Cantidad de permiso de ausencia laboral debido a enfermedad que le corresponde

Su empleador debe proporcionar hasta un total de 40 horas de permiso de ausencia laboral debido a enfermedad por cada año calendario. El año calendario de su empleador es el siguiente:

Inicio del año calendario: 1 de enero
Fin del año calendario: 31 de diciembre

Tasa de acumulación

Usted acumula horas de permiso de ausencia laboral debido a enfermedad a una tasa de 1 hora por cada 30 horas trabajadas, hasta un máximo de 40 horas de permiso por año calendario. Alternativamente, su empleador puede brindarle 40 horas de permiso de ausencia laboral debido a enfermedad acumulada por adelantado.

Fecha en que se inicia la acumulación

Usted comienza a acumular días de permiso de ausencia laboral debido a enfermedad a partir del 29 de octubre de 2018 o de su primer día de empleo, lo que ocurra más tarde.

Excepción: si está cubierto por un acuerdo de negociación colectiva vigente al 29 de octubre de 2018, usted comenzará a acumular horas de ausencia laboral debido a enfermedad bajo esta ley a partir de la fecha en que el acuerdo expire.

Fecha en la que el permiso de ausencia laboral debido a enfermedad acumulada está disponible para su uso

Puede comenzar a usar el permiso de ausencia laboral debido a enfermedad acumulada bajo esta ley a los 120 días de haber comenzado su relación laboral.

Razones aceptables para usar el permiso de ausencia laboral debido a enfermedad

Puede utilizar su permiso de ausencia laboral debido a enfermedad cuando:

- Usted necesita obtener un diagnóstico, atención médica, tratamiento o recuperación debido a un trastorno mental o enfermedad física, lesión o condición de salud; o necesita obtener atención médica preventiva.
- Usted debe cuidar de algún miembro de su familia que necesite obtener un diagnóstico médico, cuidado, tratamiento o recuperación a razón de un trastorno mental o enfermedad física, lesión o condición de salud; o un miembro de la familia necesita atención médica preventiva.
- Usted o un miembro de su familia ha sido víctima de violencia doméstica o violencia sexual y necesita tiempo para el tratamiento, asesoramiento o para prepararse para proceder legalmente.
- Usted necesita asistir a conferencias, reuniones o eventos relacionados con la educación escolar de su hijo; o para asistir a una reunión escolar para tratar temas relacionados con la salud de su hijo.
- El negocio de su empleador cierra debido a una emergencia de salud pública o necesita cuidar de un hijo cuya escuela o proveedor de cuidado infantil cerró debido a una emergencia de salud pública.

Miembros de la familia

La ley reconoce a las siguientes personas como “miembros de la familia”

- Hijo/a (biológico, adoptivo o de crianza; hijastro; guardián legal; hijo de la pareja doméstica o resultado de unión libre)
- Nieto/a
- Hermano/a
- Cónyuge
- Concubino o pareja de unión civil
- Padres
- Abuelo/a
- Hermano/a, pareja doméstica o pareja de unión civil del padre o abuelos de un empleado

- Hermanos del cónyuge, concubino o pareja de unión civil de un empleado
- Cualquier otra persona con relación consanguínea con el empleado
- Cualquier persona cuya relación cercana con el empleado sea equivalente a la familia

Aviso anticipado

Si su necesidad de permiso de ausencia laboral debido a enfermedad es previsible (se puede planificar con anticipación), su empleador podría solicitar un aviso con hasta 7 días de anticipación sobre su intención de utilizar el permiso de ausencia laboral debido a enfermedad acumulada. Si su necesidad de permiso de ausencia laboral debido a enfermedad es imprevisible (no puede planificarse con anticipación), su empleador puede solicitarle que lo notifique tan pronto como sea posible.

Documentación

Su empleador podría requerir documentación que demuestra su necesidad de solicitar un permiso de ausencia laboral debido a enfermedad acumulada en caso de que necesite 3 o más días consecutivos de trabajo, o durante ciertas fechas especificadas por el empleador. La ley prohíbe que los empleadores exijan que su proveedor de atención médica especifique el motivo médico de su permiso de ausencia laboral.

Ausencia laboral debido a enfermedad no usada

Hasta 40 horas de ausencia laboral debido a enfermedad no usadas pueden trasladarse al año calendario siguiente. Sin embargo, su empleador solo está obligado a permitirle utilizar hasta 40 horas de permiso por año calendario. Alternativamente, su empleador puede ofrecer comprar su permiso de ausencia laboral debido a enfermedad no utilizado al final del año calendario.

Usted tiene derecho a estar libre de represalias de parte de su empleador por usar su permiso de ausencia laboral debido a enfermedad

Su empleador no puede tomar represalias en su contra por:

- Solicitar y hacer uso de un permiso de ausencia laboral debido a enfermedad
- Presentar un reclamo por presuntas violaciones de la ley
- Comunicarse con cualquier persona, incluyendo compañeros de trabajo, sobre cualquier violación de la ley
- Participar en un procedimiento legal relacionado con una presunta violación de la ley, así como
- Informar a otra persona sobre los potenciales derechos que le corresponden según la ley.

Las represalias incluyen cualquier amenaza, medida disciplinaria, despido, degradación, suspensión o reducción de horas, o cualquier otra acción laboral en su contra por ejercer, o intentar ejercer, cualquier derecho garantizado por la ley.

Usted tiene derecho a presentar un reclamo

Puede presentar un reclamo en línea en el New Jersey Department of Labor and Workforce Development en ***nj.gov/labor/wagehour/complnt/filing_wage_claim.html*** o llamando al 609-292-2305 de lunes a viernes entre las 8:30 a.m. y 4:30 p.m.

Guarde una copia de este aviso y de todos los documentos que muestren la cantidad de horas de permiso de ausencia laboral debido a enfermedad, así como la acumulación y el uso de estas horas.

Usted tiene derecho a recibir este aviso en inglés y, si está disponible, en su idioma natal.

Para obtener más información, visite el sitio web del Department of Labor and Workforce Development: ***nj.gov/labor***.

Aplicado por:

Department of Labor and Workforce Development of New Jersey
División de Cumplimiento de Horas y Salarios
PO Box 389
Trenton, NJ 08625-0389
609-292-2305

Este y otros carteles obligatorios para el empleador están disponibles gratuitamente en línea en ***nj.gov/labor***.

Muestre este cartel en un lugar visible

New Jersey Department of Labor and Workforce Development

Chapter 194, Laws of New Jersey, 2009, Relating to
Employer Obligation to Maintain and Report Records

Regarding Wages, Benefits, Taxes and Other Contributions and Assessments Pursuant to State Wage, Benefit and Tax Laws

Wage Payment Law (N.J.S.A. 34:11-4.1 et seq.) and Wage and Hour Law (N.J.S.A. 34:11-56a et seq.)

Each employer must keep a record of each employee which contains the following information:

1. The name of the employee;
2. The address of the employee;
3. The birth date of the employee if the employee is under the age of 18;
4. The total hours worked by the employee each day and each workweek;
5. The earnings of each employee, including the regular hourly wage, gross to net amounts with itemized deductions, and the basis on which wages are paid;
6. Regarding each employee who receives gratuities, the total gratuities received by the employee during the payroll week;
7. Regarding each employee who receives gratuities, daily or weekly reports completed by the employee containing the following information:
   (a) the employee's name,
   (b) the employee's address,
   (c) the employee's Social Security number,
   (d) the name and address of the employer,
   (e) the calendar day or week covered by the report, and
   (f) the total amount of gratuities received; and
8. Regarding each employee for whom the employer claims credit for food or lodging as a cash substitute for the employee who receives food or lodging supplied by the employer, information substantiating the cost of furnishing such food or lodgings, including but not limited to the nature and amount of any expenditures entering into the computation of the fair value of the food or lodging and the date required to compute the amount of the depreciated investment in any assets allocable to the furnishing of the lodgings, including the date of acquisition or construction, the original cost, the rate of depreciation and the total amount of accumulated depreciation on such assets.

The employer may use any system of time keeping provided that it is a complete, true and accurate record.

The employer must keep the wage and hour records described above for a period of six years.

The employer must keep the wage and hour records described above at the place of employment or in a central office in New Jersey.

Prevailing Wage Act (N.J.S.A. 34:11-56.25 et seq.)

The Prevailing Wage Act applies to employers *only under certain circumstances*.

Specifically, it applies only when an employer enters into a contract in excess of the prevailing wage contract threshold amount for any public work (as the term "public work" is defined at N.J.S.A. 34:11-56.26) to which any public body is a party or for public work to be done on a property or premises owned by a public body or leased or to be leased by a public body.

Each public works contractor must submit to the public body or lessor which contracted for the public works project a certified payroll record containing the following employee information:

1. Name;
2. Address;
3. Social Security number;
4. Craft or trade;
5. Actual hourly rate of pay;
6. Actual daily, overtime and weekly hours worked in each craft or trade;
7. Gross pay;
8. Itemized deductions;
9. Net pay paid to the employee;
10. Any fringe benefits paid to approved plans, funds or programs on behalf of the employee; and
11. Fringe benefits paid in cash to the employee.

Each public works contractor must, within 10 days of payment of wages, submit the certified payroll record to the public body or the lessor which contracted for the public works project.

Each public works contractor which employs one or more apprentices on a public works project must maintain with its records written evidence that the apprentice or apprentices are registered in an approved apprenticeship program while performing work on the project.

Unemployment Compensation Law (N.J.S.A. 43:21-1 et seq.), Temporary Disability Benefits Law (N.J.S.A. 43:21-25 et seq.) and Family Leave Insurance Benefits Law, P.L. 2008, c. 17.

Payroll records: Each employing unit must maintain a record for each worker engaged in employment, which record must contain the following information about the worker:

1. Full name, address and Social Security number;
2. Total remuneration paid in each pay period showing separately cash, including commissions and bonuses; the cash value of all compensation in any medium other than cash; gratuities received regularly in the course of employment if reported by the employee, or if not so reported, the minimum wage rate prescribed under applicable laws of this State or of the United States, or the amount of remuneration actually received by the employee, whichever is higher, and service charges collected by the employer and distributed to workers in lieu of gratuities and tips;
3. An entry under the heading "special payments" of the amount of any special payments, such as bonuses and gifts, which have been paid during the pay period but which relate to employment in a prior period. The following shall be shown separately under this heading: cash payments, cash value of other remuneration, the nature of such payments, the period during which the services were performed for which special payments were payable;
4. The date hired, rehired and returned to work after temporary layoff;
5. The date separated from employment and the reason for separation;
6. Such information as may be necessary to determine remuneration on a calendar week basis; and
7. The number of base weeks (as the term "base week" is defined in N.J.S.A. 43:21-19(t)) and wages.

All records referred to in 1. through 7. above must be kept safe and readily accessible at the New Jersey place of business of the employing unit.

All records referred to in 1. through 7. above must be retained for the current calendar year and for the four preceding calendar years.

Once an employer becomes inactive, the employer must keep all records referred to in 1. through 7. above for the subsequent six quarters.

Wage reporting: Each employer (other than employers of domestic service workers) must electronically file a WR-30, "Employer Report of Wages Paid," with the Division of Revenue, within the Department of the Treasury, within 30 days after the end of each quarter. The WR-30 lists the name, Social Security number and wages paid to each employee and the number of base weeks worked by the employee during the calendar quarter.

Each employer of domestic service workers (as the term "domestic service worker" is defined at N.J.A.C. 12:16-13.7(b)) must file an annual, rather than quarterly, WR-30 with the Division of Revenue, within the Department of the Treasury.

Contribution reporting: Each employer (other than employers of domestic service workers) must electronically file an NJ-927, "Employer's Quarterly Report," with the Division of Revenue, within the Department of the Treasury, and remit the corresponding unemployment insurance, supplemental workforce fund, workforce development partnership fund, temporary disability insurance and family leave insurance contribution payments, within 30 days after the end of each quarter. The NJ-927 lists the total of all wages paid, the wages paid in excess of the taxable maximum, the taxable wages on which contributions are due, the number of workers employed during the pay period, the number of workers insured under a "private plan" for temporary disability insurance and the number of workers insured under a "private plan" for family leave insurance.

Each employer of domestic service workers (as the term "domestic service worker" is defined in N.J.A.C. 12:16-13.11(c)) must file an annual, rather than quarterly, NJ-927H, "Domestic Employer's Annual Report," with the Division of Revenue, within the Department of the Treasury.

Temporary Disability Insurance and Family Leave Insurance information: Each employer must retain all records pertaining to any election to discontinue a private plan for temporary disability insurance and/or family leave insurance benefits and must make such records available for inspection by the Division of Temporary Disability Insurance for a one-year period from the date that the private plan is terminated.

Each employer having a private plan for temporary disability insurance and/or family leave insurance must, within 10 days after the Division of Temporary Disability Insurance has mailed the employer a request for information with respect to a period of disability, furnish the Division with any information requested or known to the employer which may bear upon the eligibility of the claimant.

Each employer having two or more approved private plans in effect during a calendar half-year or any portion thereof must, on or before the 30th day following the close of the calendar half-year, file a report showing the amount of taxable wages paid during such calendar half-year to employees while covered under each such private plan.

Each employer who provides temporary disability insurance to its employees through a self-insured private plan must, for the six-month periods ending June 30 and December 31 of each calendar year during which the self-insured private plan is in effect, file a statement with the Division of Temporary Disability Insurance, on or before the 30th day following the end of the respective six-month period showing:

1. The number of claims received during the six-month period,
2. The number of claims accepted during the six-month period,
3. The amount of benefits paid during the six-month period, and
4. Such other information as the Division of Temporary Disability Insurance may require with respect to the financial ability of the self-insurer to meet the self-insured's obligations under the plan.

On or before the 30th day following the close of each calendar year during which a self-insured private plan for temporary disability insurance is in effect, the employer must file a report with the Division of Temporary Disability Insurance showing:

1. The amount of funds available at the beginning of that year for payment of disability benefits,
2. The amount contributed by workers during that year,
3. The amount contributed by the employer during that year,
4. The amount of disability benefits paid during that year,
5. Direct cost of administration of the plan during that year, and
6. The number of employees covered by the plan as of December 31.

Each employer who provides family leave insurance to its employees through a self-insured private plan must for the one-year period ending December 31 of each calendar year during which a self-insured private plan is in effect file a statement with the Division of Temporary Disability Insurance, on or before the 30th day following the end of the one-year period showing the following information with regard to each of the following types of claims: care of a sick child, care of a sick spouse, care of a sick domestic partner, care of a sick civil union partner, care of a sick parent, bonding by biological parent with a newborn child, bonding by domestic partner or civil union partner of biological parent with a newborn child, bonding by individual with newly adopted child:

1. The number of claims for family leave insurance benefits received during the one-year period,
2. The number of claims for family leave insurance benefits accepted during the one-year period,
3. The number of workers who received family leave insurance benefits during the one-year period,
4. The amount of family leave insurance benefits paid during the one-year period,
5. The average weekly family leave insurance benefit during the one-year period,
6. The amount of sick leave, vacation leave or other fully paid time, which resulted in reduced benefit duration during the one-year period,
7. With regard solely to family leave insurance benefit claims to care for sick family members, the amount of intermittent family leave insurance benefits paid during the one-year period, and
8. The average duration of family leave insurance benefits, in days, during the one-year period.

The information reported in 1. through 8. above must be broken down by sex and by age group, beginning at 25 years and under and increasing in increments of 10.

On or before the 30th day following the close of each calendar year during which a self-insured private plan for family leave insurance is in effect, the employer must file a report with the Division of Temporary Disability Insurance showing:

1. The amount of funds available at the beginning of that year for payment of family leave insurance benefits,
2. The amount contributed by workers during that year,
3. The direct cost of administration of the plan during that year,
4. The number of employees covered by the plan as of December 31, and
5. Such other information as the Division of Temporary Disability Insurance may require with respect to the financial ability of the self-insurer to meet the self-insured's obligation under the plan.

Workers' Compensation Law (N.J.S.A. 34:15-1 et seq.)

Upon the happening of an accident or the occurrence of any occupational disease, an employer who has insurance coverage or utilizes a third-party administrator shall promptly furnish the insurance carrier or the third-party administrator with accident or occupational disease information.

Within three weeks after an accident or upon knowledge of the occurrence of an occupational disease, every insurance carrier, third-party administrator, statutory non-insured employer, including the State, counties, municipalities and school districts, and duly authorized self-insured employer not utilizing a third-party administrator must file a report designated as "first notice of accident" in electronic data interchange media with the Division of Workers' Compensation through the Compensation Rating and Inspection Bureau in a format prescribed by the Compensation Rating and Inspection Bureau. When filed by an insurance carrier or third-party administrator, the report must also be sent to the employer. If the employer disagrees with the report, the employer may prepare and sign an amended report and file the amended report with the insurance carrier or third-party administrator. The amended report must then be filed electronically with the Division through the Compensation Rating and Inspection Bureau.

Every insurance carrier providing workers' compensation insurance and every workers' compensation self-insured employer shall designate a contact person who is responsible for responding to issues concerning medical and temporary disability benefits where no claim petition has been filed or where a claim petition has not been answered. The full name, telephone number, mailing address, email address and fax number of the contact person must be submitted to the Division of Workers' Compensation utilizing the Division's contact person form in the manner instructed on the form.

Each employer, when directed to do so by the Division of Workers' Compensation, must submit to the Division of Workers' Compensation copies of such medical certificates and reports as it may have on file.

Gross Income Tax Act (N.J.S.A. 54A:1-1 et seq.)

Employer's Quarterly Report: The Employer's Quarterly Report, NJ-927, reports New Jersey Gross Income Tax withheld, unemployment insurance, supplemental workforce fund, workforce development partnership fund, family leave insurance and temporary disability insurance wage and withholding information.

Each employer is required to electronically file an Employer's Quarterly Report, NJ-927, for each calendar quarter, regardless of the amount of tax actually due for a particular quarter. Quarterly reports are due on the 30th day of the month following the end of each quarter.

Employers of "domestic service workers" may report and pay New Jersey Gross Income Tax withheld on an annual, rather than quarterly, basis on an NJ-927H.

Records to be kept: Every employer is required to keep all pertinent records available for inspection by authorized representatives of the New Jersey Division of Taxation. Such records must include the following:

1. The amounts and dates of all wage payments subject to New Jersey Gross Income Tax;
2. The names, addresses and occupations of employees receiving such payments;
3. The periods of their employment;
4. Their Social Security numbers;
5. Their withholding exemption certificates;
6. The employer's New Jersey Taxpayer Identification Number;
7. Record of weekly, monthly, quarterly remittances and/or returns and annual returns filed;
8. The dates and amounts of payments made; and
9. Days worked inside and outside of New Jersey for all nonresident employees.

For possible failure to meet the record keeping or reporting requirements of the ...	**Phone**	**Email**	**Mail**
Wage Payment Law Wage & Hour Law Prevailing Wage Act	609-292-2305	*wagehour@dol.nj.gov*	New Jersey Department of Labor & Workforce Development Division of Wage and Hour Compliance PO Box 389 • Trenton, NJ 08625-0389
Unemployment Compensation Law Temporary Disability Benefits Law Family Leave Insurance Benefits	609-292-2810	*emplaccts@dol.nj.gov*	New Jersey Department of Labor & Workforce Development Division of Employer Accounts PO Box 947 • Trenton, NJ 08625-0947
Workers Compensation Law	609-292-2515	*dwc@dol.nj.gov*	New Jersey Department of Labor & Workforce Development Division of Workers' Compensation PO Box 381 • Trenton, NJ 08625-0381
Gross Income Tax Act	609-292-6400	*nj.taxation@treas.state.nj.us*	New Jersey Department of the Treasury Division of Taxation • Information & Publications Branch PO Box 281 • Trenton, NJ 08625-0281

This notice must be conspicuously posted. Not later than December 7, 2011, each employee must also be provided a written copy of the notice or, for employees hired after November 7, 2011, a written copy of the notice must be provided at the time of the employee's hiring. See N.J.A.C. 12:2-1.3 for alternate methods of posting and distribution by electronic means.

NEW JERSEY DEPARTMENT OF LWD LABOR AND WORKFORCE DEVELOPMENT
nj.gov/labor

Your employer is subject to the

Family Leave Insurance

provisions of the New Jersey Temporary Disability Benefits Law

New Jersey employees can receive cash benefits while taking leave from work to bond with a new child, care for a loved one with a physical or mental health condition, or cope with domestic or sexual violence. Employees can receive benefits for up to 12 consecutive weeks or 56 intermittent days in a 12-month period.

Ask your employer whether they participate in the state family leave insurance plan ("state plan") or have a private family leave insurance plan ("private plan"). See the current year's maximum benefit level, eligibility requirements, and how to apply at ***myleavebenefits.nj.gov/fli.***

State Plan

The state plan provides 85% of workers' average weekly wages, up to a maximum amount set for each calendar year. Payroll contributions from employees finance this program.

Private Plan

An employer may provide family leave insurance through a private insurance carrier, if approved by the Division of Temporary Disability and Family Leave Insurance. The plan must be at least as generous as the state plan. If your employer has an approved private plan, they must provide information about coverage and how to apply for benefits.

Job Protection

While you receive benefits, your job may be protected under state or federal law. Learn more at ***myleavebenefits.nj.gov/jobprotection.***

Bond With a New Child

Benefits are for bonding with a newborn, newly adopted, or newly placed foster child. You can receive benefits during the first year after your child was born, adopted, or placed in your care.

Family Caregivers

Benefits are to care for a loved one's mental or physical health. When applying, your loved one's medical provider will need to certify their need for your care.

Victims or Survivors of Domestic or Sexual Violence and Their Caregivers

Benefits are to handle certain matters related to domestic or sexual violence or caring for a loved one who is a victim or survivor.

Enforced by: Division of Temporary Disability and Family Leave Insurance
NJ Department of Labor & Workforce Development
PO Box 387 • Trenton, New Jersey 08625-0387

This and other required employer posters are available free online at *nj.gov/labor*.

The New Jersey Department of Labor and Workforce Development is an equal opportunity employer with equal opportunity programs. Auxiliary aids and services are available upon request to individuals with disabilities.

Display this poster in a place noticeable to all employees.

Right to be Free of Gender Inequity
or Bias in Pay, Compensation, Benefits
or Other Terms and Conditions of Employment

New Jersey and federal laws prohibit employers from discriminating against an individual with respect to his/her pay, compensation, benefits, or terms, conditions or privileges of employment because of the individual's sex.

FEDERAL LAW

Title VII of the Civil Rights Act of 1964 prohibits employment discrimination based on, among other things, an individual's sex. Title VII claims must be filed with the United States Equal Employment Opportunity Commission (EEOC) before they can be brought in court. Remedies under Title VII may include an order restraining unlawful discrimination, back pay, and compensatory and punitive damages.

The Equal Pay Act of 1963 (EPA) prohibits discrimination in compensation based on sex. EPA claims can be filed either with the EEOC or directly with the court. Remedies under the EPA may include the amount of the salary or wages due from the employer, plus an additional equal amount as liquidated damages.

Please be mindful that in order for a disparity in compensation based on sex to be actionable under the EPA, it must be for equal work on jobs the performance of which requires equal skill, effort, and responsibility, and which are performed under similar working conditions.

There are strict time limits for filing charges of employment discrimination. For further information, contact the EEOC at 800-669-4000 or at www.eeoc.gov.

NEW JERSEY LAW

The New Jersey Law Against Discrimination (LAD) prohibits employment discrimination based on, among other things, an individual's sex. LAD claims can be filed with the New Jersey Division on Civil Rights (NJDCR) or directly in court. Remedies under the LAD may include an order restraining unlawful discrimination, back pay, and compensatory and punitive damages.

Another State law, N.J.S.A. 34:11-56.1 et seq., prohibits discrimination in the rate or method of payment of wages to an employee because of his or her sex. Claims under this wage discrimination law may be filed with the New Jersey Department of Labor and Workforce Development (NJDLWD) or directly in court. Remedies under this law may include the full amount of the salary or wages owed, plus an additional equal amount as liquidated damages.

Please be mindful that under the State wage discrimination law a differential in pay between employees based on a reasonable factor or factors other than sex shall not constitute discrimination.

There are strict time limits for filing charges of employment discrimination. For more information regarding LAD claims, contact the NJDCR at 609-292-4605 or at www.njcivilrights.gov. For information concerning N.J.S.A. 34:11-56.1 et seq., contact the Division of Wage and Hour Compliance within the NJDLWD at 609-292-2305 or at http://lwd.state.nj.us.

This notice must be conspicuously displayed.

NEW JERSEY DEPARTMENT OF
LWD
LABOR AND WORKFORCE DEVELOPMENT
nj.gov/labor

Acknowledgment of Receipt of Gender Equity Notification

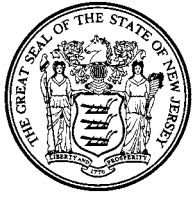
I received a copy of the gender equity notification on the date listed below.
I have read it and I understand it.

_____ _____

Name (signature) Name (print)

_____

Date



NEW JERSEY DEPARTMENT OF
LWD
LABOR AND WORKFORCE DEVELOPMENT
nj.gov/labor

Derecho a estar exento de desigualdad o discriminación
de género con respecto al pago, la remuneración, los beneficios o cualquier otro término o condición de empleo

Las leyes de New Jersey y federales prohíben a los empleadores discriminar contra cualquier persona con respecto a su pago, remuneración, beneficios o cualquier otro término, condición o privilegio de empleo debido a su género.

LEYES FEDERALES

El Título VII de la Ley de Derechos Civiles de 1964 prohíbe la discriminación laboral debido al género de la persona, entre otras cosas. Las reclamaciones acordes al Título VII deben ser presentadas ante la Comisión de Igualdad de Oportunidades en el Empleo de los Estados Unidos (EEOC, por sus siglas en inglés) antes de que puedan ser presentadas ante un tribunal. Entre los recursos legales conforme al Título VII están: una orden que prohíba los actos ilícitos de discriminación, que se pague remuneración con carácter retroactivo, y que se pague por daños compensatorios y punitivos.

La Ley de Igualdad Salarial de 1963 (EPA, por sus siglas en inglés) prohíbe la discriminación con respecto a la remuneración basado en el género de la persona. Las reclamaciones acordes a EPA se pueden presentar ya sea ante la EEOC o directamente antes los tribunales. Entre los recursos legales conforme a EPA están: la retribución de las sumas de salarios o sueldos que el empleador deba, además de una suma adicional equivalente por daños y perjuicios liquidados.

Se le ruega tener en cuenta que para que una reclamación por desigualdad de remuneración basado en el género proceda conforme a la EPA, tiene que ser por el mismo tipo de trabajo en empleos en los que su rendimiento exija las mismas destrezas, el mismo esfuerzo y las mismas responsabilidades, las cuales se realizan en las mismas condiciones de trabajo.

Existen estrictos límites en cuanto al plazo de tiempo del que se dispone para presentar reclamaciones por discriminación laboral. Para mayor información, comuníquese con la EEOC, llamando al 800-669-4000 o en www.eeoc.gov.

LEYES DE NEW JERSEY

La Ley contra la Discriminación en New Jersey (LAD, por sus siglas en inglés) prohíbe la discriminación laboral debido al género de la persona, entre otras cosas. Las reclamaciones conforme a LAD se pueden presentar a la División de Derechos Civiles de New Jersey (NJDCR, por sus siglas en inglés) o directamente ante los tribunales. Entre los recursos legales conforme a LAD están: una orden que prohíba los actos ilícitos de discriminación, que se pague remuneración con carácter retroactivo, y que se pague por daños compensatorios y punitivos.

Otra ley estatal, N.J.S.A. 34:11-56.1 y siguientes, también prohíbe la discriminación respecto a la tasa salarial o el método de pago de salarios al empleado debido a su género. Las reclamaciones conforme a esta ley contra la discriminación con respecto a los salarios se pueden presentar ante el Departamento de Trabajo y Desarrollo de la Fuerza Laboral de New Jersey (NJDLWD, por sus siglas en inglés) o directamente antes los tribunales. Entre los recursos legales conforme a esta ley están: la retribución de las sumas de salarios o sueldos que le deben, además de una suma adicional equivalente por daños y perjuicios liquidados.

Se le ruega tenga en cuenta que conforme a la ley estatal contra la discriminación con respecto a los salarios, no se considera discriminación el hecho de que exista un diferencial salarial entre los empleados basado en otros factores razonables que no sean el género de la persona.

Existen estrictos límites en cuanto al plazo de tiempo del que se dispone para presentar reclamaciones por discriminación laboral. Para mayor información relacionada con las reclamaciones conforme a LAD, comuníquese con NJDCR, llamando al 609-292-4605 o en www.njcivilrights.gov. Para obtener información acerca de N.J.S.A. 34:11-56.1 y siguientes, comuníquese con la División de Cumplimiento de Horarios y Salarios (DWHC), del NJDLWD, llamando al 609-292-2305 o en http://lwd.state.nj.us.

Este aviso se debe exponer a la vista de todos.

NEW JERSEY DEPARTMENT OF LWD
LABOR AND WORKFORCE DEVELOPMENT
nj.gov/labor

Acuse de recibo de la notificación de igualdad de género

Recibí una copia de la notificación de igualdad de género en la fecha que aparece a continuación. Lo he leído y lo entiendo.

_____ _____

Nombre (firma) Nombre (en letra de molde)

_____

Fecha

NEW JERSEY DEPARTMENT OF
LWD
LABOR AND WORKFORCE DEVELOPMENT
nj.gov/labor

Conscientious Employee Protection Act
“Whistleblower Act”

Employer retaliatory action; protected employee actions; employee responsibilities

1. New Jersey law prohibits an employer from taking any retaliatory action against an employee because the employee does any of the following:
   a. Discloses, or threatens to disclose, to a supervisor or to a public body an activity, policy or practice of the employer or another employer, with whom there is a business relationship, that the employee reasonably believes is in violation of a law, or a rule or regulation issued under the law, or, in the case of an employee who is a licensed or certified health care professional, reasonably believes constitutes improper quality of patient care;
   b. Provides information to, or testifies before, any public body conducting an investigation, hearing or inquiry into any violation of law, or a rule or regulation issued under the law by the employer or another employer, with whom there is a business relationship, or, in the case of an employee who is a licensed or certified health care professional, provides information to, or testifies before, any public body conducting an investigation, hearing or inquiry into quality of patient care; or
   c. Provides information involving deception of, or misrepresentation to, any shareholder, investor, client, patient, customer, employee, former employee, retiree or pensioner of the employer or any governmental entity.
   d. Provides information regarding any perceived criminal or fraudulent activity, policy or practice of deception or misrepresentation which the employee reasonably believes may defraud any shareholder, investor, client, patient, customer, employee, former employee, retiree or pensioner of the employer or any governmental entity.
   e. Objects to, or refuses to participate in, any activity, policy or practice which the employee reasonably believes:
      (1) is in violation of a law, or a rule or regulation issued under the law or, if the employee is a licensed or certified health care professional, constitutes improper quality of patient care;
      (2) is fraudulent or criminal; or
      (3) is incompatible with a clear mandate of public policy concerning the public health, safety or welfare or protection of the environment. N.J.S.A. 34:19-3.
2. The protection against retaliation, when a disclosure is made to a public body, does not apply unless the employee has brought the activity, policy or practice to the attention of a supervisor of the employee by written notice and given the employer a reasonable opportunity to correct the activity, policy or practice. However, disclosure is not required where the employee reasonably believes that the activity, policy or practice is known to one or more supervisors of the employer or where the employee fears physical harm as a result of the disclosure, provided that the situation is emergency in nature.

CONTACT INFORMATION

Your employer has designated the following contact person
to receive written notifications, pursuant to paragraph 2 above (N.J.S.A. 34:19-4):

Name:_____

Address:_____

_____

Telephone Number:_____

This notice must be conspicuously displayed.

Once each year, employers with 10 or more employees must distribute notice of this law to their employees.
If you need this document in a language other than English or Spanish, please call 609-292-7832.

La Ley de protección al empleado consciente
“Ley de protección del denunciante”

Acciones de represalia del empleador; protección de las acciones del empleado

1. La ley de New Jersey prohíbe que los empleadores tomen medidas de represalia contra todo empleado que haga lo siguiente:
   a. Divulgue o amenace con divulgar, ya sea a un supervisor o a una agencia pública toda actividad, directriz o norma del empleador o de cualquier otro empleador con el que exista una relación de negocios y que el empleado tiene motivos fundados para pensar que violan alguna ley, o en el caso de un trabajador licenciado o certificado de la salud y que tiene motivos fundados para pensar que se trata de una manera inadecuada de atención al paciente;
   b. Facilite información o preste testimonio ante cualquier agencia pública que conduzca una investigación, audiencia o indagación sobre la violación de alguna ley, regla o reglamento que el empleador o algún otro empleador con el que exista una relación de negocios; o en el caso de un trabajador licenciado o certificado de la salud que facilite información o preste testimonio ante cualquier agencia pública que conduzca una investigación, audiencia o indagación sobre la calidad de la atención al paciente; o
   c. Ofrece información concerniente al engaño o la tergiversación con accionistas, inversionistas, usuarios, pacientes, clientes, empleados, ex empleados, retirados o pensionados del empleador o de cualquier agencia gubernamental.
   d. Ofrece información con respecto a toda actividad que se pueda percibir como delictiva o fraudulenta, toda directiva o práctica engañosa o de tergiversación que el empleado tenga motivos fundados para pensar que pudieran estafar a accionistas, inversionistas, usuarios, pacientes, clientes, empleados, ex empleados, retirados o pensionados del empleador o de cualquier agencia gubernamental.
   e. Se opone o se niega a participar en alguna actividad, directriz o práctica que el empleado tiene motivos fundados para pensar que:
      (1) viola alguna ley, o regla o reglamento que dicta la ley o en el caso de un empleado licenciado o certificado en cuidado de la salud que tiene motivos fundados para pensar que constituya atención inadecuada al paciente;
      (2) es fraudulenta o delictiva; o
      (3) es incompatible con algún mandato establecido por las directrices públicas relacionadas con la salud pública, la seguridad o el bienestar o la protección del medio ambiente. Artículo 34:19-3 de las Leyes comentadas de New Jersey de protección del empleado consciente (N.J.S.A., por sus siglasen inglés)
2. No se puede acoger a la protección contra la represalia, cuando se hace una divulgación a un organismo público, a no ser que el empleado le informe al empleador de tal actividad, política o norma a través de un aviso por escrito y le haya dado al empleador una oportunidad razonable para corregir tal actividad, política o norma. Sin embargo, no es necesaria la divulgación en los casos en que el empleado tenga indicios razonables para creer que un supervisor o más de un supervisor del empleador tienen conocimiento de tal actividad, política o norma o en los casos en los que el empleado teme que tal divulgación pueda traer como consecuencia daños físicos a su persona siempre y cuando la naturaleza de la situación sea la de una situación de emergencia.

Información del Contacto

Su empleador ha designado a la siguiente persona para
recibir notificaciones de acuerdo al parafo 2, de la ley (N.J.S.A. 34:19-4):

Nombre: _____

Dirección:_____

_____

Número de teléfono: _____

Este aviso se debe exponer a la vista de todos.

Anualmente, patronos con 10 o más empleados, deberán distribuir notificación de esta ley a todos sus empleados.
Si necesita este documento en algún otro idioma que no sea inglés o español, sírvase llamar al 609-292-7832.

New Jersey Department of Labor and Workforce Development

Your employer is subject to the New Jersey

Unemployment & Temporary Disability

Benefits Laws

Unemployment Insurance

Benefits are payable to workers who lose their jobs or who are working less than full time because of a lack of full-time work and who meet the eligibility requirements of the law.

If you become totally or partially unemployed, file a claim for unemployment insurance benefits as soon as possible. The easiest, quickest way is to file online at *myunemployment.nj.gov*. You can also file a claim over the phone by contacting our Reemployment Call Centers at one of these numbers listed below. Note, if you were a maritime employee in the last 18 months or live outside of the United States, you must file your claim over the phone. Be prepared to have information about yourself, your employer and your work history available when filing your claim.

Cumberland Call Center 856-507-2340
Union City Call Center 201-601-4100
Freehold Call Center 732-761-2020
Out of State.....1-888-795-6672

Disability Insurance

Benefits are payable to New Jersey workers who suffer a non-work-related illness, injury, or other medical condition that prevents them from working. Temporary disability insurance coverage includes new and expecting mothers during their final weeks of pregnancy and recovery. If you become disabled and wish to apply for disability benefits, start by asking whether your employer participates in the state disability insurance plan or has a private insurance plan.

New Jersey State Disability Insurance Plan* ("state plan")

If you are covered under the state insurance plan, you may apply for disability benefits (or download a paper application — Form DS-1) online at *myleavebenefits.nj.gov*. Applying online is faster.

Submit the completed paper application by **fax** to: 609-984-4138
or **mail** to: Division of Temporary Disability Insurance
PO Box 387
Trenton, New Jersey 08625-0387

For more information, visit *myleavebenefits.nj.gov* or call 609-292-7060.

Private Disability Insurance Plan ("private plan")

New Jersey employers have the option of providing coverage to their employees through an approved private plan instead of the state plan. If you are covered under a private plan, your employer's insurance carrier is responsible for processing and paying benefits on your disability claim. If you become disabled, ask your employer for the form you need to claim benefits under the private plan.

Who pays for Unemployment & Temporary Disability Programs?

These programs are paid for by payroll taxes paid by employers and employees. Your employer is **authorized to deduct worker contributions (tax) from your wages. The deductions must be noted** on your pay envelope, paycheck, or on some other form of notice. The amount of wages that are taxable changes from year to year.

The deduction may be allocated at varying rates to the Unemployment Insurance Trust Fund, the Temporary Disability Insurance Fund and the Workforce Development/Supplemental Workforce Funds. If an approved private plan is non-contributory, no contributions can be deducted from workers' wages for disability insurance.

Your employer's contributions are based in part on their employment experience.

Enforced by: NJ Department of Labor and Workforce Development
Division of Temporary Disability Insurance, PO Box 387, Trenton, NJ 08625-0387

This and other required employer posters are available free online at *nj.gov/labor*, or from the Office of Constituent Relations, PO Box 110, Trenton, NJ 08625-0110 • 609-777-3200.

The New Jersey Department of Labor and Workforce Development is an equal opportunity employer with equal opportunity programs. Auxiliary aids and services are available upon request to individuals with disabilities.

NEW JERSEY DEPARTMENT OF LWD LABOR AND WORKFORCE DEVELOPMENT
nj.gov/labor

Display this poster in a conspicuous place

PR-1 (6/19)

Display this poster in a conspicuous place

Chapter 173, Laws of New Jersey, 1965: Relating to

Payment of Wages

All Employers Must Pay Wages to All Employees in Full at Least Twice a Calendar Month.

Executive and supervisory employees, however, may be paid at least once a calendar month.

Payment must be made on regular paydays designated in advance.

When a payday falls on a non-work day, payment must be made on the immediately preceding work day, unless a collective bargaining agreement states otherwise.

Pay periods must not end more than 10 working days before payday, when payment is made on a regular payday. If payment is by check, arrangements must be made to allow employees to cash the full check without difficulty.

- Employees leaving or terminated for any reason, including labor disputes, must be paid all wages due not later than the regular payday for the period in which employment ended.
- An additional 10 days may be allowed when a labor dispute involves payroll employees.
- Employees paid on an incentive system must be paid a reasonable estimate of wages due until exact amounts are known.
- Payment may be made through regular pay channels or by mail if requested by the employee.

It is unlawful to make any agreement for payment other than as provided in this act, except to pay at shorter intervals or to pay wages in advance.

Wages due a deceased employee may be paid to the survivors in the order of preference as outlined in the statute.

No Deductions from Employees' Wages are Permitted Except:

Amounts authorized by New Jersey or United States Law or payments to correct payroll errors.

Contributions or payments authorized by employees either in writing or under a collective bargaining agreement for:

Employee welfare • insurance • hospitalization • medical or surgical or both • pension • retirement • profit-sharing plans • group or individual retirement annuity plans • individual retirement accounts at any state or federally chartered bank, savings bank, or savings and loan association • company-operated thrift plans • security option or security purchase plans to buy marketable securities • employee personal savings accounts such as a credit union, savings fund society, savings and loan or building and loan association • Christmas, vacation or other savings funds • purchase of company products or employer loans in accordance with the payment schedule contained in the original purchase or loan agreement • safety equipment • U.S. government bonds • costs and fees to replace employee identification for access to sterile or secured areas of airports • contributions for organized and recognized charities • rental of work clothing or uniforms or for laundering or dry cleaning of work clothing or uniforms • labor union dues and fees • health club membership fees • child care services.

All Employers Must:

- Notify employees when they are hired the rate of pay and the regular payday.
- Notify employees of changes in pay rates or paydays prior to the changes.
- Give each employee a statement of deductions each pay period.
- Make and keep records for employees, including wages and hours, and make such records available for inspection.
- Provide employees when they are hired a required notice (form MW-400) describing the employer's obligation to maintain and report records regarding wages, benefits, taxes and other contributions and assessments.

The Commissioner of Labor and Workforce Development will enforce and administer the provisions of this act. The Commissioner or an authorized representative has the power to make all necessary inspections of establishments and records.

Any employer who knowingly and willfully violates any provision of this act is guilty of a disorderly persons offense. Upon conviction, such employer will be punished by a fine of at least $100 but not more than $1,000. Each day during which any violation of this act continues will constitute a separate and distinct offense.

As an alternative to or in addition to any other sanctions allowed by law for violations, the Commissioner is authorized to assess and collect administrative penalties, up to $250 for a first violation and up to $500 for each subsequent violation.

The employer will also pay the Commissioner an administrative fee equal to at least 10% but not more than 25% of any payment due to employees.

The Commissioner may, after giving the employer or successor firm notice and an opportunity for a hearing in accordance with the "Administrative Procedure Act," P.L.1968, c.410 (C.52:14B-1 et seq.), issue a written determination directing any appropriate agency to suspend any one or more licenses that are held by the employer or successor firm, for a period of time determined by the Commissioner.

Note: The Division of Wage and Hour Compliance applies New Jersey's labor laws without regard to a worker's legal status. The Division does not investigate or inquire into the legal status of any worker. The Division does not share information with "Immigration."

Enforced by: Division of Wage and Hour Compliance
NJ Department of Labor and Workforce Development
PO Box 389, Trenton, NJ 08625-0389 • 609-292-2305

This and other required employer posters are available free online at ***nj.gov/labor***.

MW-17 (4/22)

Para ser expuesto en un lugar para el público en general

Capítulo 173, Leyes del Estado de New Jersey, 1965: Relacionado al

Pago de Salarios

Es Deber de Todo Patrono el de Pagar Sueldos Integros a sus Empleados Por lo Menos Dos Veces Cada Mes

Sin embargo, los empleados ejecutivos y los supervisores pueden cobrar sus salarios con regularidad una vez al mes. Los pagos deberán ser efectuados regularmente los días previamente designados.

Cuando el día de pago corresponda a un día que no se trabaja, dicho pago habrá de efectuarse el próximo día laborable a menos que se provea de otra manera según un contrato de unión.

El fin del periodo de pago por el cual se efectúa el pago el día indicado como el día normal de pago, no se extenderá más allá de los10 días anteriores a tal día normal de pago.

Si se hace el pago por cheque, se harán los arreglos necesarios para que se pueda cambiar el cheque por la cantidad entera y sin dificultad para el empleado.

- Cuando el empleado abandona o termina el empleo por cualquier motivo, incluyendo disputas laborales, será pagado el salario entero que se le debe no más tarde del día normal de pago por el periodo en el cual sucedió la terminación.
- Se podrán permitir 10 días adicionales para procesar el pago en el caso de que una disputa laboral envuelva a los empleados que procesan el pago.
- A los empleados a quienes se pagan a base de incentivo se les pagará un estimado razonable de salarios debidos hasta que las cantidades exactas se puedan calcular.
- El pago se podrá hacer por los medios normales o por correo si se pide.

Será ilegal hacer cualquier acuerdo relacionado al pago diferente al que la ley provee, excepto para pagar a plazos más cortos o para pagar por adelantado.

Los salarios debidos a un empleado fallecido se podrán pagar a los sobrevivientes en la orden de preferencia, según aparece explicado en el estatuto.

No se harán descuentos de los salarios de los empleados exceptuando:

Cantidades autorizadas por la Ley de New Jersey o por la Ley de los Estados Unidos o pagos para corregir errores en el pago de salarios. Contribuciones o pagos autorizados por empleados sea por escrito o sea según un contrato de unión para:

Bienestar del empleado • el seguro • hospitalización • médico o quirúrgico o ambos • pensión • jubilación • planes de participación en los beneficios y de ahorros administrados por la compañía • y planes para establecer fondos de jubilación individual en una base del grupo o del individuo o cuentas de jubilación individual en cualquier banco aprobado por el gobierno estatal o federal o asociación de ahorros y préstamos • Opciones para comprar valores o planes para compar valores en el mercado libre • Cuentas personales de ahorros de los empleados • unión de crédito • sociedades de fondos de ahorros • fondos de • erección de edificios y préstamos • ahorros y préstamos • vacación de Navidad u otros fondos de ahorros o bonos del Ministerio de Hacienda de los Estados Unidos.

La compra de productos de la compañía o préstamos del empleador de acuerdo con un horario de pagos periódicos según el contrato original sobre la compra o el préstamo • Equipos de seguridad • costos y honorarios por reemplazar las identificaciones de los empleados para el acceso a zonas de aeropuertos que son estériles o aseguradas • Contribuciones para caridades organizadas y debidamente reconocidas • El alquiler de ropa para el trabajo o uniformes o para la lavada o el lavado en seco de ropa para el trabajo o uniformes • Las cuotas y pagos de unión • cuotas de membresía en gimnasios • servicios de cuidado infantil.

Todo Patrono Deberá:

- Notificar a los empleados en el momento de ofrecerle el trabajo cuanto les va a pagar y el día normal de pago.
- Notificar a los empleados de los cambios en el pago y en el día normal de pago antes de efectuarse estos cambios.
- Proveer a cada empleado un comprobante con cada pago indicando el pago en bruto, el pago neto y los descuentos.
- Hacer y mantener documentos para los empleados, incluyendo horas y salarios, y presentar estos documentos para inspección.
- Proveer a los empleados al momento de la contratación el aviso obligatorio (formulario número MW-400) en el que se describe la obligación del empleador de mantener registros e informar en materia de salarios, beneficios, impuestos y otras contribuciones y evaluaciones.

El Comisionado del Trabajo esforzará y administrará las provisiones de esta ley. El Comisionado o un representante autorizado tendrá el poder de hacer todas las inspecciones necesarias de establecimientos y documentos.

Cualquier patrono que, a sabiendas y deliberadamente, viole cualquier provisión de esta ley será culpable de un delito menor y al ser declarado culpable le será impuesta una multa no menor de $100 ni mayor de $1,000. Cada día durante el cual cualquier violación de esta ley continúa constituirá una ofensa distinta y aparte.

Como una alternativa a o además de cualesquier otras sanciones proveídas por la ley por violaciones, el Comisionado está autorizado para imponer y colectar penalidades administrativas, hasta un máximo de $250 por la primera violación y hasta un máximo de $500 por cada subsiguiente violación.

El patrono pagará al Comisionado también un pago administrativo que lleque a no menos de 10 por ciento ni más de 25 por ciento de cualquier pago de salarios que se haga como resultado de una investigación del Comisionado o de su representante autorizado.

El Comisionado puede, luego de disponer el envío de una notificación al empleador o empresa sucesora y de brindar la oportunidad de tener una audiencia de conformidad con las disposiciones de la “Ley de Procedimientos Administrativos (Administrative Procedure Act)”, P.L.1968, c.410 (C.52:14B-1 et seq.), emitir una decisión por escrito impartiendo instrucciones a la agencia pertinente para que proceda a suspender una o más licencias en posesión del empleador o empresa sucesora, por el período de tiempo que determine el Comisionado.

Por Favor Tome Nota: La División de Cumplimiento de Horarios y Salarios no investiga ni hace preguntas acerca del estado legal de ningún trabajador. La División aplica las leyes laborales de New Jersey de manera equitativa sin importar el estado legal del trabajador. La División no comparte información con “Inmigración”.

Esforzada por: Division of Wage and Hour Compliance
NJ Department of Labor and Workforce Development
PO Box 389 • Trenton, NJ 08625-0389 • 609-292-2305

Este y otros pósters requeridos por el empleador están disponibles en línea gratis en ***nj.gov/labor***.

MW-17S (4/22)